

Writ against 6.5B bill-correction rejection dismissed for CGRF remedy

Allahabad High Court · Division Bench · 9 November 2020 · Writ-C No. 15062 of 2020 · WRIT - C No. 15062 of 2020 · **Writ dismissed; consumer relegated to CGRF under clause 7.10(iii).**

HEADNOTE

A writ challenging an Executive Engineer's rejection of a bill-correction application under clause 6.5.B of the Uttar Pradesh Electricity Supply Code, 2005 is not entertained where clause 7.10(iii) affords a complaint to the Consumer Grievance Redressal Forum. The Division Bench dismissed the petition with liberty to avail that alternative remedy.

FACTUAL SUMMARY

Recovery of electricity dues was initiated against Prakash Khare. He filed Writ-C No. 13779 of 2019 seeking correction of a Kanpur Electric Supply Company Limited bill; that petition was disposed of on 22 April 2019 with a direction to apply under clause 6.5.B of the Uttar Pradesh Electricity Supply Code, 2005. The Executive Engineer, Urban Electricity Distribution Division, Dada Nagar, Kanpur Nagar, rejected the claim on 1 June 2019. After Khare's death, the present writ by his legal representative challenged that rejection. The Power Corporation objected that clause 7.10(iii) provided a Consumer Grievance Redressal Forum complaint.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iii)

CGRF alternative remedy after 6.5B rejection

HOLDING

A writ petition challenging an Executive Engineer's order rejecting a consumer's application for correction of an electricity bill under clause 6.5.B of the Uttar Pradesh Electricity Supply Code, 2005 will not be entertained where the consumer has an alternative remedy under clause 7.10(iii) to file a complaint in the Consumer Grievance Redressal Forum. The petition is dismissed with liberty to avail that remedy. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances After the Executive Engineer rejected the clause 6.5.B bill-correction claim, the Court refused to entertain the writ because clause 7.10(iii) supplies a CGRF complaint for billing grievances. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 The writ was dismissed on the undisputed preliminary objection that the consumer could complain to the Consumer Grievance Redressal Forum under clause 7.10(iii). ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND OF THE EXECUTIVE ENGINEER'S ORDER DATED 1.6.2019

The writ was dismissed on alternative remedy; the merits of the 6.5.B rejection were not examined. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Prakash Khare vs. The Collector Kanpur Nagar</i> Writ-C No. 13779 of			1	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
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2019 (Allahabad High Court, 22.4.2019)

SCJ-2383 · Writ against 6.5B bill-correction rejection dismissed for CGRF remedy · Writ-C No. 15062 of 2020 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.